Policy Effectiveness in Addressing Girls' Inequality in Africa

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WHY IS THIS IMPORTANT?

- To ameliorate the factors that contribute to girls' mortality and morbidity. Among other factors these include **child marriage**, **female genital cutting** and the **failure to attain an education**
- To better implement the policies protecting young girls
- To improve countries' future economic development, for which adolescent girls' education and overall well-being are essential (ICRW)

METHOD

- Comparative historical analysis
- The documents analyzed include policies, international laws, conventions, reports, newspapers, and peer-reviewed scholarly articles

LITERATURE REVIEW

Civilization Theory: Samuel Huntington

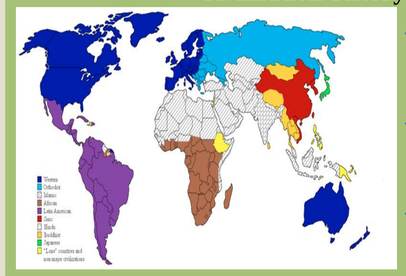


Figure 1

- Source of conflict in the world is not primarily ideological or economic but cultural
- Civilization defined as a cultural entity sharing cultural attributes, mainly religion
- Islamic Civilizations resistant to Western policies

Global Networks

- Recursivity of law from global to local (Halliday and Carruthers).
- Transnational Advocacy Networks help enforce international policies (Keck and Sikkink).
- Bond between international laws and African legal systems (Oppong).

Economic/Material Theory

- The Marxian perspective, an alternative viewpoint in the sociology of law suggests that the ruling class shape the law and use it to their advantage
- Law emerges out of economic relations (Marx)
- Tighter global economic integration leads to exploitation of women (Harvey)

Diversity

- Ethnic divisions can impede policy implementation and Africa's growth (Easterly and Levine)

HYPOTHESIS

1. **Civilization Theory**: If a society is considered "Islamic" by Huntington's definition, the country will be resistant to Western policies
2. **Global Network**: Countries adopt policies to maintain international legitimacy without rigorously implementing them
3. **Economic Theory**: The more integrated into the global economy, the greater the gender inequality
4. **Diversity**: The more ethnic diversity in a country, the more varied the progress within the country because certain groups will resist



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ABSTRACT

This research explores the implementation of policies designed to protect girls and enhance their life circumstances: minimum-age of marriage laws, anti-female-genital cutting laws, and compulsory education laws in Ghana, Ethiopia and Mali. The focus of the study is to compare and contrast policy effectiveness. It considers the details of the policies and related programs themselves, but also takes into account broader contextual factors that are rarely considered in assessments of effectiveness: countries' acquiescence to international law, global economic integration, cultural attributes, mobilization by state and non-state actors, and local circumstances such as inequality, national political history and diversity. Results are consistent with theories suggesting a clash of civilizations, the importance of global networks, and resistance resulting from local ethnic diversity. Global economic integration appears to improve girls' equality rather than undercut it, contradicting earlier work by Harvey.

BACKGROUND

Child Marriage

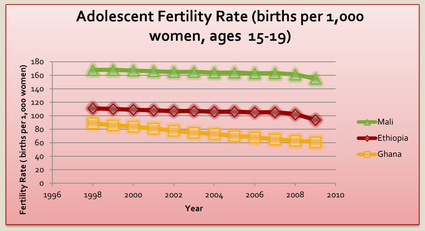


Figure 2:Adolescent Fertility Rate

- Child marriage contributes to high fertility rates in Sub-Saharan Africa
- It hinders proper growth of adolescent girls and often becomes an impediment in educational attainment

Education Attainment

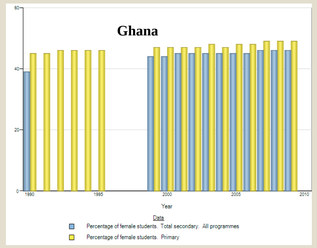


Figure 3

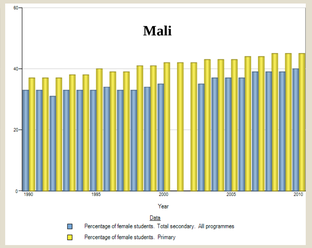


Figure 4

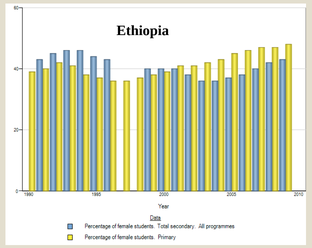


Figure 5

Figures 3,4 and 5: Percentage of female students in primary and secondary schools

Female Genital Cutting

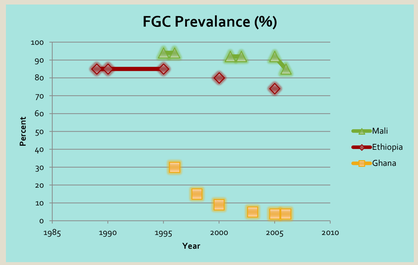


Figure 6:FGC Prevalence

- Female genital cutting is the collective name given to a number of cultural practices that involve the partial or total removal of female genitals (Center for Reproductive Rights)
- This practice impacts the health and well-being of adolescent girls

	Ghana		*Ethiopia*		*Mali*	
	Country Ratifications	National Legislations	Country Ratifications	National Legislations	Country Ratifications	National Legislations
Minimum age of marriage policy	CRC-1990 CEDAW-1986	set the minimum age at 18 years in 1998	CRC-1991 CEDAW-1981	set the minimum age at 18 years in 2005	CRC-1990 CEDAW-1985	set the minimum age at 15 years
Legal measures to eliminate FGC	CRC-1990 CEDAW-1986	passed a law in 1994 criminalizing FGC	CRC-1991 CEDAW-1981	passed a law in 2004 criminalizing FGC	CRC-1990 CEDAW-1985	No anti-FGC law
Compulsory education laws	CDE-not ratified	Basic Education is free and compulsory 1987	CDE-not ratified	Basic education is free for all but not compulsory	CDE-2007	Basic Education is free and compulsory 1999

CRC- Convention on the Rights of the Child
CEDAW- Convention on the Elimination of All Forms of Discrimination against Women
CDE- Convention against Discrimination in Education
*Both CRC and CEDAW contain articles on traditional practices which includes FGC and early marriage
*Basic Education-first nine years

Table 1:Legal Measures at the global and local level

HIGHLIGHTS FROM FINDINGS

Civilization

- Mali- falls under Huntington's "Islamic Civilization", Ghana- "African Civilization" and Ethiopia- "Lone country" (Figure 1)
- Compared to Ghana and Ethiopia, Mali shows higher adolescent fertility rate, higher FGC prevalence and lower female enrollment in school (Figure 2, 3,4,5and 6)
- This supports the hypothesis that the "Islamic Civilization" has less effective policies but it is important to note Huntington considers only religion as a determining factor for civilizations
- Ethiopia and Ghana are inconclusive because Huntington does not further discuss how their civilization would respond to Western policies

Global Networks

- FGC domestic laws have different impacts varying by country (Figure 6 and Table 1)
- Ghana's domestic law appears to have been effectively implemented
- In contrast, in Ethiopia a less rigorous law adoption on harmful traditional practices in 1994 appears to have set a slow trend for FGC decline. A later law criminalizing FGC led to a continuation of this decline rather than significant impact
- Mali has not adopted an anti-FGC law and its rates of FGC remain high

Economic/Material

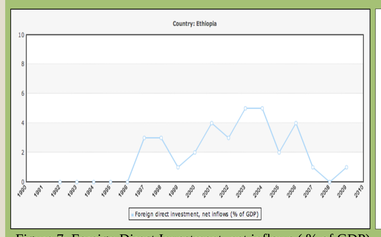


Figure 7: Foreign Direct Investment, net inflows (% of GDP)

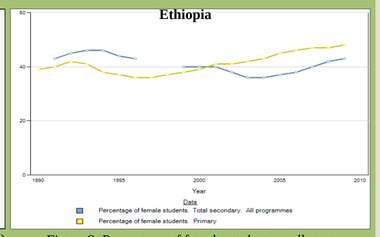


Figure 8: Percentage of female student enrollment

- Comparing the foreign direct investment percent with education participation of female students in Ethiopia, it appears in the recent years as the FDI percent declines female education participation is increasing suggesting gender equality
- This contradicts with the hypothesis that the greater global economic integrations, the greater the gender inequality

Diversity

- In Ghana, a look at the percentage of 10-14 year old females "not in school" by region shows the Northern and Upper East regions (both areas mostly populated by the Mole-Dagbani ethnic group) have high percentage of girls out of school (Demographic Health Survey 2003)
- In contrast, ethnic groups such as Akan, Dangme and Ewe populate regions that show low percentage of girls not in school supporting the hypothesis that the more ethnic diversity, the varied the progress

DISCUSSION

- Adolescent Fertility Rate and FGC prevalence is declining and education attainment is increasing in the three countries, however, it is important to consider multi-dimensional approach in assessments of policy effectiveness such as cultural attributes, global networks, role of state and non-state actors, cultural diversity, political history and global economic integration to continue to better the lives of young girls impacted.

List of references available upon request